

AMENDMENT NO. 1 TO SOFTWARE DEVELOPMENT & MAINTENANCE AGREEMENT

(Real Deal Kickz SC — Intellectual Property Ownership Update)

Effective Date: _____

This Amendment ("Amendment No. 1") modifies the Software Development & Maintenance Agreement originally executed between:

Client: Josiah Smith, Real Deal Kickz SC

Developer: Jacob Rushinski

1. Purpose of Amendment

This Amendment supersedes and replaces any conflicting or contradictory terms in Section 6 — Software Ownership & Rights of the original Agreement.

2. Updated Intellectual Property Ownership

2.1 Ownership of Source Code

All source code, components, architecture, and derivative works ("Software Code") remain the exclusive property of the Developer, Jacob Rushinski.

2.2 Ownership of Business Assets

The Client owns all brand assets, product data, customer data, analytics, and the deployed site instance.

3. License Granted to Client

The Client receives a perpetual, non-transferable license to operate the Real Deal Kickz platform for its business only. No rights to redistribute, resell, or modify the Software Code beyond operational use.

4. Developer Reuse Rights

The Developer retains unrestricted rights to reuse, modify, or commercialize the Software Code in any capacity.

5. Confidentiality and Access

All code, system architecture, and infrastructure details are confidential IP of the Developer. Developer retains required access rights unless mutually altered.

6. Governing Law

This Amendment is governed by the laws of the Commonwealth of Pennsylvania.

7. Effect of Amendment

All terms in the original Agreement remain in effect except where modified by this Amendment.

8. Signatures

Client: Tosiah smith Date: Jan 6, 2026
Developer: Jacob Rushinski Date: Jan 4, 2026

box SIGN 1J3689P3-1V967ZQ2